ZIBUSISO MOYO	**APPLICANT**
AND	
NGONI HOBODO	**1ST RESPONDENT**
AND	
CEPHAS MUTUNAMI	**2ND RESPONDENT**
AND	
PARDON MAZVINDIRE	**3RD RESPONDENT**
AND	
EVERSON KOKE	**4TH RESPONDENT**
AND	
EDITH CHATIKOBO	**5TH RESPONDENT**
AND	
ZIVANAI MAKUFA	**6TH RESPONDENT**
AND	
HILARY MARINGE	**7th RESPONDENT**
AND	
BERNAS NKOMO	**8th RESPONDENT**
AND	
OFFICER COMMANDING POLICE VICTORIA FALLS	**9th RESPONDENT**
AND	
THE COMMISSIONER GENERAL OF POLICE	**10th RESPONDENT**
AND	
THE MINISTER OF HOME AFFAIRS	**11th RESPONDENT**

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 6 JUNE 2025

Chamber Application

S Mukuni for the Applicant
S Jukwa and Ms. MM Takaedza for the Respondents

NDUNA J:

This is an application for the reinstatement of a civil lawsuit that was dismissed due to inactivity. The applicant seeks redress in the form of damages for unlawful arrest, detention, and physical harm sustained while in police custody allegations which include a miscarriage as she was pregnant and substantial medical expenses. After the matter was dismissed by the Registrar on July 23, 2022, interns of Practice Direction 1/22, the applicant brought this motion under Rule 60 of the High Court Rules 2021, seeking judicial permission to revive the case. The respondents, oppose the application, arguing that the delay in seeking reinstatement is both unreasonable and prejudicial.

FACTUAL BACKGROUND

The background to the matter is that the applicant instituted the claim in January 2019, seeking damages amounting to USD 150,000 and ZAR 308,500. The case proceeded to the pre-trial conference stage. However, due to a combination of factors among them the disruptions caused by the COVID-19 pandemic, the case stalled and was eventually dismissed by the Registrar for want of prosecution. The applicant contends that despite the dismissal, she remained actively engaged in efforts to resolve the matter, including pursuing settlement negotiations with the respondents and submitting medical records in support of her claim. Additionally, she highlights her deteriorating health condition, which necessitated medical treatment in South Africa and further contributed to the delay in taking formal legal steps.

In her submissions, the applicant states COVID-19 pandemic as a significant factor that impeded litigation between 2020 and 2022. She argues that during this time, the courts were either closed or operating at reduced capacity, which affected the pace of proceedings. Moreover, she claims that ongoing settlement discussions with the respondents gave her a reasonable expectation that the matter could be resolved amicably without reverting to formal litigation. She also explains that her poor health, including the need to travel abroad for treatment, made it practically impossible to act sooner. Emphasizing the seriousness of the claims, she submits that the interests of justice favor reinstatement, particularly given that she suffered significant medical and financial harm due to alleged police misconduct. She argues that the respondents being state actors would not be unduly prejudiced by the reinstatement of the matter, whereas she stands to suffer irreparable harm if the claim is not heard on its merits.

The applicant relies on Rule 60 of the High Court Rules, which allows for the reinstatement of a dismissed matter upon a showing of good cause. She also cites Paragraph 3.2 of Practice Direction 1/22, which recognizes that matters dismissed for inactivity may, with judicial approval, be restored if the applicant can demonstrate compelling reasons for the delay.

The respondents opposed the application. They argue that the applicant waited an unreasonably long time of over two years after the dismissal in July 2022 before approaching the court in December 2024. They contend that by the time the matter was dismissed, the COVID-19 pandemic had ceased to be a valid excuse, as the courts had resumed normal operations. Furthermore, they dispute the relevance of post-dismissal settlement talks, noting that any negotiations that took place after the matter was dismissed cannot justify the failure to seek reinstatement earlier. They further

submitted, the applicant's conduct demonstrates a lack of diligence and seriousness in prosecuting her claim.

The respondents also raised concerns about prejudice in their averments. They pointed out that police institutions are governed by strict document retention policies, typically lasting only three years. Given the lapse of time, they argued that critical documents and evidence may no longer be available. They also indicate that one of the named respondents has since passed away, and others have either left public service or are no longer traceable. These developments, they argued, significantly impair their ability to mount a defense and render reinstatement manifestly unfair.

ISSUES FOR DETERMINATION

1. Whether the Applicant Has Shown Good Cause for Reinstatement
2. Whether Prejudice to the Respondents Arises from the Delay

Application of the Law to facts

Whether the Applicant Has Shown Good Cause for Reinstatement

For an applicant to succeed in reinstatement, he/she has to explain the default that led to dismissal and to show good cause why the matter should be reinstated. The law regarding condonation for noncompliance with the rules is a well-trodden path in our jurisdiction. In *Kodzwa v Secretary for Health & Anor 1999 (1) ZLR 313 (S)* it was held that,

> "The factors to be considered in such an application are as follows:
>
> (a) That the delay involved was not inordinate, having regard to the circumstances of the case
>
> (b) That there is a reasonable explanation for the delay;
>
> (c) That the prospects of success should the application be granted are good; and

(d) The possible prejudice to the other party should the application be granted".

In *Tel-One (Pvt) Ltd v Communication and Allied Services Workers Union of Zimbabwe* SC 01/06, this Court stated the following;

> "Essentially, in an application of this nature, the applicant must satisfy the court firstly, that he has a reasonable explanation for the delay in question and secondly that his prospects of success on appeal are good"

This principle was affirmed in *Conju Incorporated (Pvt) Ltd v Registrar of the Supreme Court* SC 28/20, where the court reiterated the need for good cause and a credible explanation supported by real prospects of success at p 6, reiterated that:

> " The legal principle governing applications for reinstatement of appeals is now settled in this jurisdiction. It is that in an application for the reinstatement of an appeal that was regarded as abandoned and deemed to have lapsed the applicant must show good cause for the default. In doing so, the applicant is required to satisfy the court firstly, that he or she has a reasonable explanation for the delay in question and secondly, that his or her prospects of success on appeal are good."

The applicant in the present matter attributed the delay to three causes: (1) the impact of COVID-19 on court operations, (2) medical treatment in South Africa following injuries sustained during arrest, and (3) attempts at settlement discussions. While COVID-19 restrictions between 2020 and early 2022 are acknowledged as a real impediment to litigation, normal operations by mid-2022 had been restored and thus the application could have been brought. Therefore, this justification does not explain the inaction that followed the dismissal in July 2022.

The applicant has not offered a continuous account of what steps, if any, were taken between July 2022 and December 2024 to prosecute the matter or to seek legal advice regarding reinstatement.

In *Bessie Maheya v Independent Africa Church* SC 58/07, Malaba JA (as he then was) emphasized that courts must consider the entire period of delay and weigh all surrounding circumstances, including the importance of the case, the prejudice to the respondent, and the need to avoid unnecessary delays in the administration of justice where he states on pp 5

> "The question for determination is whether the applicant has shown a cause for the re-instatement of the appeal. In considering applications for condonation of non-compliance with its Rules, the Court has a discretion which it has to exercise judicially in the sense that it has to consider all the facts and apply established principles bearing in mind that it has to do justice. Some of the relevant factors that may be considered and weighed one against the other are: the degree of non-compliance; the explanation therefore; the prospects of success on appeal; the importance of the case; the respondent's interests in the finality of the judgment; the convenience to the Court and the avoidance of unnecessary delays in the administration of justice"

Applying these principles, the explanation for delay in the instant case appears fragmented and retrospective. There is no affidavit evidence showing continuous engagement with the respondents or the court. There is also no medical affidavit or formal proof to substantiate the claim of incapacitation. As such, the standard set in the *Kodzwa* and *Tel-One* cases, *supra,* has not been clearly satisfied.

The seriousness of the applicant's claim involving alleged unlawful arrest, detention, and medical injury is not in question. However, in the *Maheya,* case, *supra*, the court noted that even important cases must be pursued in accordance with the rules. Courts are required to uphold both procedural discipline and substantive justice.

Whether the Delay Has Prejudiced the Respondents

The second issue concerns the extent to which the delay in seeking reinstatement has caused prejudice to the respondents. The principle of prejudice is central to the exercise of judicial

discretion in reinstatement applications. The respondents oppose the application on the basis that the two-year delay following the dismissal of the matter in July 2022 has materially compromised their ability to present a defence. The cases of *Manika v Sibindani* HH 254/25 and *Ndebele v Ncube* 1992 (1) ZLR 288 (S) are instructive in assessing this issue.

In *Manika v Sibandani* HH 254-25 on pp4 it was held

> "It is important to consider whether the granting of the amendment would cause prejudice to the defendants. I do not think so. It seems to me that the type of prejudice that must be shown in such a case is prejudice that will hamper the defendants in the presentation of their defence in the main claim".

This definition distinguishes between inconvenience or delay, and substantive trial prejudice that is, prejudice that directly impairs the respondent's ability to defend the claim. In the present case, the respondents argue that they are unable to meaningfully defend the action because one of the named respondents has since died, and others have either retired or left public service.

The respondents as state officials or institutions whose ability to trace personnel and preserve institutional memory over extended periods is subject to statutory limitations. The delay of over two years following the dismissal of the matter in July 2022 significantly increases the risk that critical evidence both documentary and testimonial can no longer be retrieved or effectively presented. This prejudices their right to a fair hearing.

The *Ndebele* case, *supra,* addresses a broader concern in civil procedure namely, the increasing trend of applicants seeking indulgence from the courts for delays attributable to themselves or their legal representatives. The court held as follows:

> "It is the policy of the law that there should be finality in litigation. On the other hand, one does not want to do injustice to litigants. But it must be observed that in recent year's applications for rescission, for condonation, for leave to apply or appeal out of time, and for other relief arising out of

> delays either by the individual or his lawyer have rocketed in numbers. We are bombarded with excuses for failure to act."

The applicant made no move to reinstate the matter for more than two years after its dismissal, despite the resumption of normal court operations by mid-2022. There is no record of any interim communication with the court, nor evidence of efforts to preserve testimony or relevant evidence in anticipation of a future application. This degree of inaction, especially when combined with the potential unavailability of witnesses and records, creates a presumption of prejudice against the respondents and places the court in the very situation *Ndebele v Ncube* warns against, being inundated with explanations after long periods of dormancy. When the delay is both prolonged and unexplained for substantial periods it affects not only the fairness of a possible future trial but also undermines the principle of finality in litigation. Therefore the delay here is one which is prejudicial to the respondent.

DISPOSITION

In light of the inordinate and insufficiently explained delay of more than two years following the dismissal of the matter. This resulted in prejudice to the respondents' ability to defend the claim particularly the unavailability of key witnesses and potential loss of critical police documentation. Therefore the applicant has failed to demonstrate good cause warranting the reinstatement of the proceedings.

ORDER

1. The application for reinstatement of the matter dismissed on 23 July 2022 be and is hereby dismissed.

2. The applicant be ordered to pay the respondents' costs of suit on the ordinary scale.

Dube, Nkala & Company Legal Practitioners, applicant's legal practitioners
Civil Division of the Attorney General's Office, respondents' legal practitioners